

**25VECV06097 25VECV06097**

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-21

Motion: DEFENDANT GRIMMWAY ENTERPRISES, INC.'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

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Case Number: 25VECV06097 Hearing Date: July 21, 2026 Dept: U

SUPERIOR COURT OF  
THE STATE OF CALIFORNIA

FOR  
THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

DANETTE GOLDEN-PIERCE,  
an individual,

Plaintiff,

vs.

GRIMMWAY ENTERPRISES, INC., a Delaware  
corporation; WHOLE FOODS MARKET CALIFORNIA, INC., a California corporation;  
and DOES 1-50, inclusive,

Defendants.

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CASE NO: 25VECV06097

[TENTATIVE] ORDER RE: DEFENDANT GRIMMWAY  
ENTERPRISES, INC.'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

Dept. U

8:30 a.m.

July 21, 2026

I.

BACKGROUND

This case arises from an alleged E. coli  
outbreak traced back to a bag of carrots sold at a Whole Foods grocery store.

On October 23, 2025,  
Plaintiff Danette Pierce filed her original complaint against  
Defendants Grimmway Enterprises, Inc. ("Grimmway") and Whole Foods Market  
California, Inc. ("Whole Foods").

On January 16, 2026, Cross-Complainant Whole Foods filed  
its cross-complaint against Cross-Defendant Grimmway.

On January 27, 2026, Plaintiff filed her form amendment naming Defendant Mrs. Gooch's Natural Food Markets, Inc. ("Gooch's") as DOE #1 in the complaint.

On February 17, 2026, Plaintiff filed her first amended complaint (the "FAC") against Defendants Grimmway and Whole Foods, alleging: (1) strict products liability; (2) failure to warn; (3) breach of express warranties; (4) breach of implied warranties; (5) negligent products liability; (6) violation of the Consumer Legal Remedies Act (the "CLRA"); and (7) violation of Business and Professions Code section 17200.

On April 20, 2026, Grimmway filed its demurrer to the FAC and motion to strike portions thereof.

On April 29, 2026, Plaintiff filed her form amendment correcting her name from "Danette Golden-Pierce" to "Danette Pierce."

On July 6, 2026, Plaintiff filed her opposition brief as to Grimmway's demurrer and motion to strike.

On July 7, 2026, Whole Foods dismissed its cross-complaint.

On July 14, 2026, Grimmway filed its reply briefs as to its demurrer and motion to strike.

II.

## LEGAL STANDARD

### a. Demurrer

A demurrer is a procedure to object to a pleading set forth under Code of Civil Procedure section 430.10, et seq. Because a demurrer tests the pleadings alone and not the evidence or other extrinsic matters, a demurrer analysis considers only those defects which appear on the face of the pleading or are judicially noticed. *SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905. When considering demurrers, courts assume the truth of the facts alleged in the pleading and read the allegations liberally and in context. *Schifando*

v. City of Los Angeles (2003) 31 Cal.4th 1074, 1081.

A demurrer for sufficiency attacks a pleading on the ground that it does not contain facts sufficient to state a cause of action. Code Civ. Proc., § 430.10 (e); Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747. Parties may also demur to causes of action individually. In either case, the procedure is also called a 'demurrer for sufficiency,' and it tests the pleading by itself, alone and disconnected from extraneous matters. Hahn, at p. 747

A special demurrer for uncertainty may be brought under Code of Civil Procedure section 430.10 (f) where the pleading is so poorly written that the defendant cannot reasonably respond.¿ Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616 (Khoury).

b.

Motion to Strike

The Court has broad authority to strike any portion of a pleading drawn not in conformity with the law and its orders.¿ Code Civ. Proc., § 436.¿ The trial court shall strike an allegation of punitive damages on motion unless the plaintiff has pleaded ultimate supporting facts.¿ Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255 (Clauson).

III.

DISCUSSION

Grimmway demurs to Plaintiff's sixth and seventh causes of action in the FAC on grounds of uncertainty. Grimmway also moves to strike portions of the FAC on various grounds.

The demurrer is overruled. The motion to strike is denied.

a.

Review of Allegations in the FAC

Plaintiff

pleads that:

· In

October 2024, she bought and ate bag of organic carrots that turned out to be contaminated with E. coli.

· Grimmway

grew and processed the carrots, while Whole Foods sold them under its “365” private-label brand.

· in

late 2024, health agencies traced a multistate E. coli O121 outbreak to Grimmway’s organic carrots, prompting a recall in November of 2024 that covered the exact bag Plaintiff bought. The outbreak sickened 48 people across 19 states, hospitalized 20, caused one case of hemolytic uremic syndrome, and killed one person in California.

(FAC, ¶¶ 1-5, 12-17.)

Plaintiff

further pleads:

· Grimmway

knew its carrot-growing and processing operations carried a risk of fecal contamination.

· Grimmway

did not put adequate sanitation, water-quality, and testing safeguards in place, and kept shipping carrots after signs of contamination risk emerged without timely warning anyone.

· Whole

Foods sold the tainted carrots under its own brand while representing them as safe and organic. Plaintiff pleads this was done with conscious disregard for consumer safety and was authorized or ratified by company management. (FAC, ¶¶ 19, 26-30.)

Plaintiff

also pleads that:

· She

bought the carrots on October 7, 2024, refrigerated them, and started eating them on October 16, 2024, after washing and peeling them.

· By

October 20, 2024, she had symptoms including painful urination, pelvic inflammation, chills, GI distress, and fatigue, and she became bedridden.

· She

became too sick to travel to see her dying 95-year-old father.

· On

November 6, 2024, after waking with severe back pain and blood in her urine, she went to a clinic and tested positive for E. coli, requiring ongoing medical treatment.

(FAC, ¶¶ 31-36.)

b.

Plaintiff's sixth and seventh causes of action are not uncertain as to Grimmway.

Grimmway

demurs to the violation of the CLRA and violation of Business and Professions Code section 17200 causes of action based on uncertainty. Grimmway argues that Plaintiff's failure to specify which of the three (3) Defendants these causes of action are brought against and which specific acts by which Defendants support these causes of action creates "uncertainty and ambiguity for the Defendant as how to properly defend themselves against Plaintiff's allegations." (Demurrer, p. 4:22-23.) The Court disagrees.

The

necessary elements of a CLRA cause of action are: (1) a consumer; (2) who suffers any damage; and (3) because of the use or employment by any person of a method, act, or practice declared to be unlawful by Civil Code section 1770.4 (Civ. Code, §1780 (a); Buckland v. Threshold Ent., Ltd. (2007) 155 Cal.App.4th 798, 809, 811, overruled in other part by Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 326-327.)

The necessary elements

for unfair business practices under Section 17200 are: (1) a business practice; (2) that is unfair, unlawful, or fraudulent; and (3) an authorized remedy. (Bus. & Prof. Code, § 17200; *Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 676.)

Plaintiff

sufficiently specifies

which acts and omissions by Grimmway contributed to her CLRA and unfair business practices claims. Specifically,

Plaintiff alleges Grimmway grew and processed the tainted carrots; knew its carrot-growing and processing operations carried a risk of fecal contamination; did not put adequate sanitation, water-quality, and testing safeguards in place; and kept shipping carrots after signs of contamination risk emerged without timely warning anyone.

Given these specific allegations against Grimmway, the Court disagrees that the complaint is impermissibly vague as against Grimmway. Plaintiff's allegations are sufficient for Grimmway to know what claims need to be admitted or denied. This is sufficient to defeat a demurrer for uncertainty. See *Khoury*, supra, 14 Cal.App.4th at p. 616.

As to Grimmway's position that the FAC impermissibly fails to specify which defendants are included as to Plaintiff's sixth and seventh causes of action in the headings, the Court also disagrees. Plaintiff

specifies that both causes of action are alleged against "all defendants." (See FAC, pp. 15:21, 17:17.) There is nothing impermissible about alleging

a single cause of action against multiple defendants. Given that Plaintiff's specific factual allegations set forth why she believes Grimmway is liable for her injuries, Plaintiff's notation of "all defendants" as to her sixth and seventh causes of action is sufficient.

The demurrer is overruled.

c.

Plaintiff's claims for damages and alter ego allegations are not improperly alleged for purposes of a preliminary motion to strike.

Grimmway

moves to strike Plaintiff's allegations related to seeking punitive damages, prejudgment interest, attorneys' fees, and treble damages. Grimmway also moves to strike Plaintiff's allegations related to alter ego liability.

The

Court has broad authority to strike any portion of a pleading drawn not in conformity with the law and its orders.¿ Code Civ. Proc., § 436. The trial court shall strike an allegation of punitive damages on motion unless the plaintiff has pleaded ultimate supporting facts.¿ Clauson 67 Cal.App.4th at 1255.

As to Plaintiff's allegations related to seeking punitive damages, "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." Code Civ. Proc., § 3294 (a).

Plaintiff alleges Grimmway knew its carrot-growing and processing operations carried a risk of fecal contamination. Plaintiff alleges Grimmway did not put adequate sanitation, water-quality, and testing safeguards in place, and kept shipping carrots after signs of contamination risk emerged without timely warning anyone. Plaintiff alleges Grimmway's conduct caused an E. coli outbreak and resulted in serious injuries to dozens of people, including at least one death. For purposes of a preliminary motion to strike, Plaintiff's allegations are sufficiently particularized to show reckless, intentional, and oppressive conduct.

As to Plaintiff's claim for attorneys' fees, attorneys' fees are recoverable under the CLRA. See Civ. Code, § 1780. Given that the Court is not invalidating Plaintiff's CLRA claim as against Grimmway, Plaintiff's claim for attorneys' fees is not improper.

As to Plaintiff's claim for prejudgment interest, Civil Code section 3288 authorizes the trier of fact, in its discretion, to award prejudgment interest "[i]n action for the breach of an obligation not arising from contract, and in every case of oppression, fraud, or malice." Because Plaintiff's claims sound in tort and because Plaintiff alleges oppressive conduct, section 3288 supports Plaintiff's request for prejudgment interest for purposes of pleading.

As to Plaintiff's claim for treble damages, Civil Code section 3345 authorizes treble damages in an action brought by or on behalf of a

senior citizen to redress unfair or deceptive acts or practices. For purposes of that section, a "senior citizen" is a person 65 years of age or

older. See Civ. Code, § 1761 (f). Here, Plaintiff is a senior citizen within

the meaning of the statute. Plaintiff

alleges she was born in 1958 and was 65 years of age or older at times relevant

to this action. To support a claim for

treble damages under Civil Code section 3345, this is sufficient for purposes

of pleading.

As to Plaintiff's alter ego claims, the Court disagrees with Grimmway that Plaintiff's

alter ego allegations are improperly alleged in this multi-defendant

action. Nor are such allegations irrelevant

to Plaintiff's claims. While Grimmway

may ultimately be correct that Plaintiff's alter ego allegations fail as

against Grimmway/Whole Foods/Gooch's, such facts are outside the four corners

of the complaint and are thus not the proper subject of a preliminary motion to

strike.

The

motion to strike is denied.

IV.

CONCLUSION

Defendant

Grimmway Enterprises, Inc.'s demurrer to Plaintiff's First Amended Complaint is

OVERRULED.

Defendant

Grimmway Enterprises, Inc.'s motion to strike portions of Plaintiff's First

Amended Complaint is DENIED.

Defendant

Grimmway Enterprises, Inc. is ORDERED to file its Answer to Plaintiff's

First Amended Complaint within ten (10) days.

Cal. Rules of Court, Rule 3.1320(j).

Plaintiff is ORDERED

to give notice.

DATED: July 21, 2026

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Judge of the  
Superior Court